RUSSIA MANHIVI
versus
R. MOYO N.O
and
THE STATE

HIGH COURT OF ZIMBABWE
**MUCHAWA J**
HARARE; 23 March and 23 April 2026

***Court Application for Review***

*P Patisani,* for the applicant
No appearance for the 1st respondent
*L Chitanda*, for the 2nd respondent

**MUCHAWA J:**

This is a court application for review of the conviction and sentence imposed on the applicant by the court *a quo* made in terms of s 26,27 and 29 of the High Court Act [Chapter 7:06]. On 4 November 2024 the applicant was tried for the crimes of contravening s 89(4) (i) and (ii) of the Postal and Telecommunication Act [Chapter 12:05] together with s 4 of the Copper Control Act, and 4A (3) of the Copper Control Amendment No. 6 of 2022. He was sentenced to a total of 20 years imprisonment, being a 10-year mandatory sentence for each crime.

The grounds of review are set out as follows:

> "1. Gross Irregularity
> a. The court *a quo* grossly misdirected itself to the extent that its decision was grossly irregular since it convicted the applicant on the crime of possession when contrary evidence on record showed that the artifacts were handed to the applicant at the police station and not that he had been found in possession.
> b. The court *a quo*'s decision convicting the applicant was so unreasonable in its defiance of logic that no reasonable court seized with the same facts would have arrived at the same decision, more particularly so in that the defence that was raised by the applicant was confirmed by the concession made by the State witness that she handed over cables they were charged to be in possession of at the police station, confirming the absence of a chain of custody, however the court *a quo* proceeded to convict nonetheless."

The relief sought is couched as follows:

> "1. That the application for review be granted.
> 2. That the decision of the court *a quo* convicting the applicant handed down by the Honourable Magistrate R Moyo on the 4th of November 2024 be set aside and substituted with a decision acquitting the applicant.
> 3. Alternatively,
>  a. The application for review be granted.
>  b. The matter is remitted to the court *a quo* for determination before a different magistrate for a trial *de novo*."

The application is opposed by the second respondent. As a preliminary point, it is submitted that the application is improperly before the court as it raises issues best dealt with on appeal and not by way of review.

It is submitted that s 26 of the High Court Act gives the High Court power, jurisdiction and authority to review all proceedings and decisions of all inferior courts of justice, tribunals and administrative authorities in Zimbabwe.

Section 27 sets out the grounds of review as follows:

> "(a) absence of jurisdiction on the part of the court, tribunal or authority concerned.
> (b) interest in the cause, bias, malice or corruption on the part of the person presiding over the court or tribunal concerned or on the part of the authority concerned, as the case may be.
> (c) gross irregularity in the proceedings and decision."

In this matter, it is argued that the applicant has brought an appeal disguised as an application for review. This is because the real grievance is the correctness of the decision on the facts and the law.

Mr *Patisani* submitted that this application is premised on grounds of gross irregularity due to a lack in proper reasoning and inadequate consideration of the material evidence before the court. Such irregularity is said to have prevented a fair trial. Reference was made to the case of *Kwaramba* v *Bhunu* 2012(2) ZLR 358(S) at 359 E for the definition of the word irregularity as follows:

> "…an irregularity occurs when a judicial officer takes into account factors that he should not take into account or fails to take into account factors he should take into account in the process of the making of the decision he is seized with. An irregularity also occurs where the law is misapplied or an incorrect procedure adopted."

The particulars of the alleged irregularity were said to be that the applicant's defence was that the alleged cables were handed to him at the police station by a State witness and not found in his possession as alleged. The third state witness was said to have testified that she handed the cables to the applicant and his co-accused at the police station.

The above evidence is said to have raised a fundamental issue regarding possession and the integrity of the exhibits as there was no proven chain of custody. The court *a quo*'s decision is impugned for making no finding on the chain of custody or reconciling the State witness' confirmation with the charge and proceeding to convict him without addressing his defence.

Dealing with the chain of custody is said to be important in showing the absence of alteration or substitution of evidence.

On its part the second respondent denies that there was any gross irregularity by the court a quo as evidence adduced through the State witnesses proved that the applicant was found in possession of a Tel-One drop cable that was under his bed and processed copper that was in a bucket. The recoveries were made by the police at his place of residence after the first and fourth accused persons indicated to the police that the applicant was their buyer. A search was conducted leading to the recoveries in the presence of the applicant. The witnesses did not know the applicant and their evidence was clear and corroborative of each other.

The fact that the exhibits were handed over at the police station is said to be regular. On page 66 of the record the applicant confirms that a drop cable was recovered from under his bed. Exhibit 9 tendered before the court by consent of the applicant has the applicant's signature confirming that the articles were recovered from him. The articles were signed for at National Railways of Zimbabwe after they had been weighed in his presence. This is what was then handed over to him at the police. It is argued that on the merits the application should be dismissed.

The learned authors Herbstein and Van Winsen, in *Civil Practice of the High Court of South Africa*, 5th ed at p 1271 distinguish an appeal and a review, as follows:

> "The reason for bringing proceedings under review or appeal is usually the same *viz* to have the judgment set aside. Where the reason for wanting this is that the court came to the wrong conclusion on the facts or law, the appropriate procedure is by way of appeal. Where however the real grievance is on the method of the trial, it is proper to bring the case on review."

In case of *National Foods Ltd* v *Kare* &ORS 1990 (1) ZLR 223(H) it was held that if the complainant is that the decision was wrong, then one should appeal.

In *Mawere v Minister of Justice* 2005 (1) ZLR 317 (H) at page 324G it was held that a review court's power are limited to checking the procedural proprieties of the proceedings and should not reach a determination on the merits of the case.

A look at the grounds of review, the submissions by the applicant and those of the second respondent make clear that I am being drawn into consideration of the merits of this matter. In other words, it is posed whether the decision reached is correct on the facts and the law after weighing the evidence led in the court *a quo*. That, I believe, is better done by an appeal court.

The same result would be achieved, which is setting aside the decision of the court *a quo.*

The problem with the applicant's approach is that he had latched on one piece of evidence and seeks to hinge his whole matter on that. It is the handing over of the exhibits at the police station to the applicant and his co-accused. The second respondent on the other hand relates to the recoveries, exhibit 9 which the applicant signed and the handover of the exhibits.

My considered view is that an appeal court will more extensively deal with the factual findings and the legal conclusions.

Accordingly, the application for review is improperly before me and I strike it off the roll.

**MUCHAWA J:……**

*Patisani & Associated,* Applicant's legal practitioners
*National Prosecuting Authority,* Second Respondent's Counsel.